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Case Number: 25PSCV01012 Hearing Date: July 16, 2026 Dept: G

Defendant Ford Motor Co.'s Demurrer to Plaintiffs Alexander Sinohui and Marguerite Sinohui's Second Amended Complaint

Respondent:

Plaintiffs Alexander Sinohui and Marguerite Sinohui

TENTATIVE

RULING

Defendant

Ford Motor Co.'s Demurrer to Plaintiffs Alexander Sinohui and Marguerite Sinohui's Second Amended Complaint is deemed MOOT.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective motor vehicle. On September 19, 2017, plaintiffs Alexander Sinohui and Marguerite Sinohui (collectively, the Sinohuis) bought a truck manufactured by defendant Ford Motor Company (Ford). The Sinohuis allegedly brought the car to defendant Puente Hills Ford (the Dealership), but they allegedly failed to repair the vehicle.

On March

20, 2025, the Sinohuis filed the Complaint.

On August 28, 2025, the Sinohuis filed the Amended Complaint, alleging causes of action for (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation

of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement by concealment.

On

February 5, 2026, the court dismissed the Dealership.

On

April 3, 2026, Ford filed this demurrer to the second amended complaint. On May 20, 2026, the Sinohuis filed the opposition, and on May 27, 2026, Ford filed the reply. On June 3, 2026, the court conducted a hearing on the demurrer, noted that the Sinohuis failed to file a second amended complaint, and continued the hearing on the demurrer.

This

case is set for a case management conference and a continued hearing on the demurrer on July 16, 2026.

ANALYSIS

Ford

generally demurs to the first and third cause of action based on the statutes of repose and limitations and specifically demurs to the third cause of action based on the failure to state sufficient facts.

For the following reasons, the court deems the demurrer MOOT.

Legal

Standard

“The

party against whom a complaint . . . has been filed may object[] by demurrer . . . to the pleading. . . .” (Code Civ. Proc., § 430.10.)

Discussion

Ford

demurs to a second amended complaint, but the Sinohuis failed to file a second amended complaint. (See 4/3/2026 Dem., p. 7.) Since there is no second amended complaint, the court deems the demurrer MOOT.

Furthermore,
the court sustained Ford's demurrer to the Amended Complaint in part with leave to amend and required the Sinohuis to file a second amended complaint on or before February 25, 2026. (See 2/5/2026 Min. Order, p. 1.) The Sinohuis failed to file a second amended complaint by February 25, 2026; the Sinohuis' counsel drafted a second amended complaint and attempted to file it on March 2, 2026. (See Lister Decl., ¶ 7.) The court rejected the Sinohuis' proposed second amended complaint because it asserted a cause of action against the Dealership, a dismissed party. (See Lister Decl., Exh. B.) However, even if the court permitted the Sinohuis to file the proposed pleading, it would have been late. The declaration from the Sinohuis' counsel does not provide any excuses for their failure to timely amend.

Thus,
the court permits Ford to file a motion to dismiss based on the Sinohuis' failure to timely amend. The court notes that Ford moves to dismiss in its supplemental brief in support of the demurrer, but the court finds it more appropriate for Ford to file a separate noticed motion to give the Sinohuis sufficient opportunity to oppose the motion. (See 6/29/2026 Supp. Brief, pp. 1, 3.)

CONCLUSION

For
these reasons, the demurrer to second amended complaint is deemed MOOT.